defended as taxes on the "privilege" of doing business. *Ante*, at 878–879. See, *e. g.*, *WHYY, Inc.* v. *Glassboro*, 393 U. S. 117 (1968); *Wheeling Steel Corp.* v. *Glander*, 337 U. S. 562 (1949); *Hanover Fire Ins. Co.* v. *Harding*, 272 U. S. 494 (1926); *Southern R. Co.* v. *Greene*, 216 U. S. 400 (1910). These decisions were addressed in *Western & Southern*, and the classifications were characterized as impermissibly discriminatory because they did not "'rest on differences pertinent to the subject in respect of which the classification is made.'" 451 U. S., at 668, quoting *Power Manufacturing Co.* v. *Saunders*, 274 U. S. 490, 494 (1927). As the majority concedes, none of these decisions intimates that the tax statutes at issue in the decisions rested on relevant differences between domestic and foreign corporations or had purposes other than the raising of revenue at the out-of-state corporations' expense.

In fact, the Court noted in several of these opinions that foreign corporations *may* validly be taxed at a higher rate if the classification is based on some relevant distinction. No such distinction, however, had been demonstrated or even alleged. See *WHYY, Inc.* v. *Glassboro*, *supra*, at 120 ("This is not a case in which the exemption was withheld by reason of the foreign corporation's failure or inability to benefit the State in the same measure as do domestic nonprofit corporations"); *Wheeling Steel Corp.* v. *Glander*, *supra*, at 572 ("[T]he inequality is not because of the slightest difference in Ohio's relation to the decisive transaction"); *Southern R. Co.* v. *Greene*, *supra*, at 416–417 (parties conceded that the business of the foreign and domestic corporations was precisely the same).[2] Lacking the threshold requirement of an articu-

[2] The only cited authority that arguably addressed the issue raised in the instant case is a *per curiam* reversal and remand without opinion of a decision upholding a discriminatory ad valorem tax on a foreign insurer's fixtures and other tangible property. See *Reserve Life Ins. Co.* v. *Bowers*, 380 U. S. 258 (1965). A reversal and remand is more enigmatic even